

Sanskriti University, Chhata, Mathura, Uttar Pradesh Act, 2016

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State of Uttar Pradesh - Act

Sanskriti University, Chhata, Mathura, Uttar Pradesh Act, 2016

UTTAR PRADESH

India

Sanskriti University, Chhata, Mathura, Uttar Pradesh Act, 2016

Act 20 of 2016

Published on 16 September 2016

Commenced on 16 September 2016

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Sanskriti University, Chhata, Mathura, Uttar Pradesh Act, 2016

(U.P. Act

No. 20 of 2016

)

Statement of Objects and Reasons. - With a view to encouraging private sector to participate in the field of higher education and encourage competition to attract high quality faculty and students and continuously enhance quality it has been decided to establish and incorporate a teaching University sponsored by the Sanskriti Society for Education, Research and Development, New Delhi "a not for profit" Society registered under the Societies Registration Act, 1860, so as to provide to the students and teachers the necessary atmosphere and facilities through proper structuring of courses, new methods of teaching, training, learning and for the promotion of innovations and integral development of personality.

The Sanskriti University, Chhata, Mathura, Uttar Pradesh Bill, 2016 is introduced accordingly.

Received the assent of the Governor on September 14, 2016 and published in the U.P. Gazette, Extraordinary, Part 1, Section (Ka), dated 16th September, 2016, pp. 15-29.

(As passed by the Uttar Pradesh Legislature)

An Act to establish and incorporate a teaching University in district Mathura of Uttar Pradesh sponsored by Sanskriti Society for Education, Research and Development, New Delhi 'a not for profit' Society registered under the Societies Registration Act, 1860 and to provide for matters connected therewith or incidental thereto.

It is hereby enacted in the Sixty-seventh Year of the Republic of India as follows -

1.

Short title.

- This Act may be called the Sanskriti University, Chhata, Mathura Uttar Pradesh Act, 2016.

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"Academic Council" means the Academic Council of the University;

(b)

"Board" means the Board of Studies and the Planning Board, or any other Board of the University;

(c)

"Chancellor", "Pro-Chancellor", "Vice-Chancellor" and "Pro Vice-Chancellor" means respectively the "Chancellor", the Pro-Chancellor, the "Vice-Chancellor", the "Pro Vice-Chancellor" of the University;

(d)

"Court" means the Court of the University;

(e)

"Director/Principal" means the Head of an Institution, a College, Centre and School, or the person appointed for the purpose to act as such in his absence;

(f)

"Department" means a Department of Studies and includes a Centre of Studies and Research;

(g)

"Employee" means any person appointed by the University, and includes a teacher or any other member of the Staff of the University;

(h)

"Executive Council" means the Executive Council of the University;

(i)

"Existing College" means a college or an institution which imparts professional education and is proposed to be merged, run and maintained by the University;

(j)

"Faculty" means a Faculty of the University;

(k)

"Hostel" means Scholar/Students Hostel of the University;

(l)

"Institution/College" means a college including existing college or an Institution established or maintained by or associated to or constituent of the University in accordance with this Act and the Statutes;

(m)

"Prescribed" means prescribed by Statutes;

(n)

"Records and Publications" means the Records and Publications of the University;

(o)

"Regulatory Body" means the statutory bodies established by the Central Government from time to time such as University Grants Commission and includes the All India Council for Technical Education, the Bar Council of India, the Distance Education Council, the Dental Council of India, the Indian Nursing Council, the Medical Council of India, the

National Council for Teacher Education, Central Council for Indian Medicine, the Pharmacy Council of India;

(p)

"Society" means Sanskriti Society for Education, Research and Development, New Delhi a 'not for profit' Society registered under the Societies Registration Act, 1860;

(q)

"Statutes" and "Ordinances" means respectively, the Statutes and the Ordinances of the University for the time being in force;

(r)

"Student" means a student enrolled in the register of the University;

(s)

"Teacher of the University" means Professors, Associate Professors, Assistant Professors, and such other persons as may be appointed for imparting education instructions, or conducting research in the University and are designated as Teachers by the Ordinances;

(t)

"Treasurer", "Registrar", "Deputy Registrar", "Finance Officer", "Controller of Examinations", "Librarian", or "Proctor" means respectively the Treasurer, the Registrar, the Deputy Registrar, the Finance Officer, the Controller of Examinations, the Librarian or the Proctor of the University;

(u)

"University" means the Sanskriti University, Chhata, Mathura, Uttar Pradesh established under Section 3.

3.

Establishment of the University.

(1)

There shall be established in district Mathura of Uttar Pradesh by the Society, a University in the name of "Sanskriti University, Chhata, Mathura, Uttar Pradesh".

(2)

The University shall be a body corporate.

4.

Conditions for the establishment of the University.

- The sponsoring body, the Society shall, for the purposes of establishing the University under this Act, fulfill the following conditions, namely -

(a)

create a Permanent Endowment fund with minimum of Rs 10 (ten) crore;

(b)

duly possess minimum 40 acres contiguous land earmarked for the University;

(c)

construct on land referred to in clauses (b) buildings of at least 24000 sq. meter carpet area, out of which at least 50 per cent shall be utilised for academic and administrative purposes;

(d)

install equipments, computers, furniture, assets, infrastructural facilities [other than building mentioned in (b) above] and other consumables and non consumables of minimum Rs 1 (one) crore in offices and laboratories in the building referred to in clause (b); and an undertaking of procuring the computers, furniture, assets, infrastructural facilities [other than building mentioned in (b) above] and other consumables and non consumables of minimum four crore rupees in the next 5 years;

(e)

appoint at least one Professor, two Associate Professors and sufficient number of Assistant Professors and supporting staff members in every department or discipline;

(f)

purchase of books and periodicals worth Rs 10 lakh in the library and also undertake to invest Rs 50 lakh for the books, periodicals, computer library networking and other library facilities in the first three years;

(g)

undertake to arrange the co-curricular activities, extracurricular activities, debate, competitions, quiz programmes,

sports, NSS and NCC for the students as per the standards of regulatory bodies;

(h)

standards and conditions set by UGC, AICTE, NCTE, BCI and other regulatory bodies established by the State or Central Governments are to be satisfied;

(i)

undertake to establish the provident fund for the employees of the University and to introduce other welfare schemes;

(j)

make the Statutes and the Ordinance for the administration and functioning of the University;

(k)

any arrangements made by the University shall not differ from the provisions of the Act and regulations of the University Grants Commission and other regulatory bodies;

(l)

to ensure transparent functioning of the University shall put the clearances obtained from the Regulatory Bodies in the public domain;

(m)

furnish information to the State Government in the prescribed format as per periodicity determined by the State Government;

(n)

such other conditions as may be required by the State Government to be fulfilled before the establishment of the University.

5.

Starting of the University.

(1)

The University shall start operation only after the State Government issues to the Society a letter of authorisation for the commencement of the functioning of the University.

(2)

The State Government shall issue the letter of authorisation after receipt of an unambiguous affidavit along with documents from the Society to the effect that all conditions referred to in Section 4 have been fulfilled.

6.

Objects of the University.

- The objects of the University shall be to disseminate and advancement of knowledge and skill for providing instructional, research and extension of facilities in such branches of learning as it may deem fit and the University shall endeavour to provide to students and teachers the necessary atmosphere and facilities for the promotion of, -

(a)

innovations in education leading to restructuring of courses, new methods of teaching, training and learning including online learning, blended learning, continuing education and such other modes and integrated and wholesome development of personality;

(b)

studies in various disciplines;

(c)

interdisciplinary studies;

(d)

national integration, secularism, social equity and inculcation of international understanding and ethics.

7.

Powers of the University.

- The University shall have the following powers, which it will exercise as per guidelines and norms as prescribed by UGC and State Government from time to time namely -

(a)

to provide for instruction in such branches of learning as the University may, from time to time, determine and to make provisions for research and for the advancement and dissemination of knowledge and skills;

(b)

to impart and promote the study of Science, Engineering and Technology, Architecture, Biomedical Sciences, Medical Sciences, Dental Sciences, other various Sciences not specifically mentioned, Nursing, Rehabilitation, Ayurveda, Unani, Homeopathy, Naturopathy, Siddha, Veterinary Sciences, Agriculture, Pharmacy, Management, Hotel and Hospitality Management, Law, Nutritional Sciences, Animation, Multimedia, Psychology, Council Courses, Tourism, Creative and Performing Arts, Pharmacology, Healthcare, Taxation, Investment Management and other Professional courses, Micro financing and other Professional courses and also History, Religions, Culture, Commerce, Economics, Humanities, Philosophy, Languages, Education, Journalism, Social Sciences, Music, Art, Physical Education, Industry Integrated courses etc. or any other subject as decided by Academic Council from time to time through in-campus, off-campus, offshore-campus and satellite centres or by conducting centres or by distant educational programmes, Online education, Video conference etc. as decided by the academic council of the University from time to time;

(c)

to honour educational stalwarts and persons of academic eminence with decoration of professor Emeritus;

(d)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing of persons, and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(e)

to confer honorary degrees or other distinctions in such manner as may be prescribed;

(f)

to provide education and training including correspondence as such other courses, to such persons as are not members of the University, as it may determine;

(g)

to institute as per UGC norms and State Government regulations Directorships, Principalships, Professorships, Associate Professorships, Assistant Professorships, and other teaching or academic posts required by the University and to make appointments for the same;

(h)

to create administrative, ministerial and other posts and to make appointments thereto;

(i)

to appoint/engage persons of eminence, working in any other University or organisation permanently or for a specified period;

(j)

to co-operate, collaborate or associate with any other University or Authority or Institution in India and abroad in such manner and for such purpose as the University may determine;

(k)

to establish and maintain schools, centres, specialised laboratories in other units for research and instructions as are in the opinion of the University, necessary for the furtherance of its objects;

(l)

to institute and award fellowships, scholarships, studentships, medals and prizes;

(m)

to establish and maintain and supervise residences, hostels within the University and promote the health and general welfare activities for students and staff;

(n)

to make provisions for research and consultancy, and for that purpose to enter into such arrangements with other institutions or bodies as the University may deem necessary;

(o)

to declare a centre, an institution, a department, or school, as the case may be, in accordance with the Statutes;

(p)

to determine standards in accordance with UGC norms/State norms for admission into the University, which may include examination, evaluation or any other method of testing to ensure quality;

(q)

to demand and receive payment of fees and other charges;

(r)

to make special arrangements in respect of women and other disadvantaged students as the University may consider desirable;

(s)

to regulate and enforce discipline among the employees and students of the University and take such disciplinary measures in this regards as may be deemed necessary by the University;

(t)

to make arrangements for promoting the health and general welfare of the employees of the University;

(u)

to receive donations and to acquire, hold, manage and dispose of any property, movable or immovable for the welfare of the University;

(v)

to borrow, mortgage with the approval of the Society on the security of the property of the University, money for the purposes of the University;

(w)

to appoint either on contract or otherwise, visiting professors emeritus professors, consultants, fellows, scholars, artists, course writers and such other persons who may contribute to the advancement of the objects of the University;

(x)

to organise and to undertake extramural studies and extension service; and

(y)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

8.

Admission and standards.

(1)

Admission to the different academic programmes shall be made in accordance with the laws and University Grants Commission norms for quality for the time being in force.

(2)

The University shall ensure that the academic standards of the courses offered by the University are in accordance with the guidelines of the University Grants Commission and other statutory bodies as the case may be.

(3)

The teacher student ratio shall be in accordance with the guidelines of the University Grants Commission and specific Councils.

(4)

Academic performance of the University with respect to standards set by the UGC/State Government/other Regulatory Bodies shall be periodically reviewed by a Committee of Academic Experts constituted by the Chancellor consisting of one Chairman and four members including two members as nominees of the State Government.

(5)

The Chairman and other four expert members shall be from academic field not below the rank of Professor and from one of the specialisation being run in the University. The report of the Committee shall be submitted to the State Government by the Chancellor and discussed in the Court of the University for further, necessary actions. A copy of the report along with the actions taken by the University shall be sent to the UGC and State Government and also displayed in the public domain.

9.

University open to all classes and creeds.

- The University shall be open to persons of either sex and of whatever race, creed, caste or class, and it shall not be lawful for the University to adopt to impose on any person any test whatsoever of his religious belief profession in order to entitle him to be admitted therein as an officer, a teacher, staff member, student, or to hold any office therein or to graduate thereat:

Provided that reservation in the posts and recruitment of the employees and reservation of seats for admission in any course of study in the University for the students belonging to the Scheduled Castes, Scheduled Tribes and Other

Backward Classes of citizens shall be regulated by the order of the State Government issued from time to time.

10.

Officers of the University

- The following shall be the officers of the University -

(a)

the Chancellor;

(b)

the Pro-Chancellor;

(c)

the Vice-Chancellor;

(d)

the Pro Vice-Chancellor;

(e)

the Director/Principal;

(f)

the Registrar;

(g)

the Dean of Faculty;

(h)

the Dean of Students' Welfare;

(i)

the Controller of Examinations;

(j)

the Chief Proctor;

(k)

the Treasurer;

(l)

the Finance Officer; and

(m)

such other officers as may be declared by the Statutes to be officers of the University.

11.

The Chancellor.

(1)

The Chancellor shall be appointed by the Management Committee of the Society for a period of three years.

(2)

The Chancellor shall by virtue of his office, be the Head of the University and shall constitute interim Executive Council.

(3)

The Chancellor may by writing under his hand addressed to the Society resign from his office.

12.

The Pro-Chancellor.

(1)

The Pro-Chancellor shall be appointed by the Management Committee of the Society for a period of three years.

(2)

The Pro-Chancellor shall assist the Chancellor in discharging his duties and preside at the convocation in his absence.

(3)

The Pro-Chancellor may in writing under his hand addressed to the Chancellor resign from his office.

13.

The Vice-Chancellor.

(1)

The Vice-Chancellor shall be appointed by the Chancellor in such manner as may be prescribed, for a period of three years.

(2)

The Vice-Chancellor shall be the principal executive and academic officer of the University and shall be the Chairman of the Academic Council and Planning Board of the University, and shall exercise general, supervision and control over the affairs of the University and give effect to the decisions of the authorities of the University.

(3)

The Vice-Chancellor may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall convey to such authority the action taken by him on such matters:

Provided that if the authority of the University or any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section may prefer an appeal to the Chancellor within thirty days from the date of communication of such decision. The Chancellor may confirm, modify or reverse such action taken by the Vice-Chancellor.

(4)

The Vice-Chancellor shall exercise such powers and perform such other functions as may be prescribed.

14.

The Pro-Vice-Chancellor.

(1)

The Pro-Vice-Chancellor shall be appointed by the Vice-Chancellor in such manner and shall exercise such powers and perform such functions as may be prescribed.

(2)

The Pro-Vice-Chancellor appointed under sub-section (1) shall discharge his duties in addition to his duties as a Professor.

(3)

The Pro-Vice-Chancellor shall assist the Vice-Chancellor in discharging day to day duties as and when required by the Vice-Chancellor.

(4)

The Pro-Vice-Chancellor shall get honorarium of such amount as may be determined by the Society.

15.

Director/Principal.

- The Director/Principal shall be appointed, in such manner and shall exercise such powers and perform such functions as may be prescribed.

16.

The Registrar.

(1)

The Registrar shall be appointed in such manner as may be prescribed.

(2)

The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such other powers and perform such other functions as may be prescribed.

(3)

The Registrar shall be the ex-officio Secretary of the Executive Council and the Academic Council.

17.

Dean of Faculty.

- Every Dean shall be appointed in such manner and shall exercise such powers and perform such functions as may be prescribed.

18.

The Treasurer.

- The Treasurer shall be appointed in such manner and shall exercise such powers and perform such functions as may be prescribed.

19.

Finance Officer.

(1)

The Finance Officer shall be appointed in such manner and shall exercise such powers and perform such functions as may be prescribed.

(2)

The Finance Officer shall be the ex-officio Secretary of Finance Committee.

20.

Other Officers.

- The manner of appointment and powers and duties of the other officers of the University including the Dean of Students' Welfare, Controller of Examinations and Chief Proctor shall be such as may be prescribed.

21.

Authorities of the University.

- The following shall be Authorities of the University -

(a)

the Court;

(b)

the Executive Council;

(c)

the Academic Council;

(d)

the Finance Committee;

(e)

the Planning Board;

(f)

the Board of Faculties;

(g)

the Admissions Committee;

(h)

the Examinations Committee; and

(i)

such other authorities as may be declared by the Statutes to be authorities of the University.

22.

The Court.

(1)

The constitution of the Court and the term of office of its members shall be such as may be prescribed.

(2)

Subject to provisions of this Act the Court shall have the following powers and functions, namely -

(a)

to review from time to time, the broad policies and programmes of the University and suggest measures for the working, improvement and development of the University,

(b)

to consider and pass resolutions on the Annual Report and Annual Accounts of the University and Audit Report of such accounts;

(c)

to advise the Chancellor in respect of any matter which may be referred to it for advice;

(d)

to perform such other functions as may be prescribed.

23.

The Executive Council.

(1)

The Executive Council shall be the principal executive body of the University.

(2)

The constitution of the Executive Council, the term of the office of its members and its powers and duties shall be such,

as may be prescribed.

(3)

An officer of Higher Education Department not below the rank of Joint Secretary to the Government of Uttar Pradesh shall be the member of the Executive Council.

24.

The Academic Council.

(1)

The Academic Council shall be the Principal Academic Body of the University and shall subject to the provisions of the Statutes and the Ordinances, coordinate and exercise general supervision over the academic policies of the University.

(2)

The constitution of the Academic Council, the term of office of its members and its powers and functions shall be such, as may be prescribed.

25.

The Finance Committee.

(1)

The Finance Committee shall be the principal financial body of the University to take care of the financial matters.

(2)

The constitution powers and functions of the Finance Committee shall the such, as may be prescribed.

26.

The Planning Board.

(1)

The Planning Board shall be the principal planning body of the University. The Board shall ensure that the infrastructure and academic support system meets the norms of the University Grants Commission or the respective Councils.

(2)

The constitution of the Planning Board, term of office of its members and its powers and functions shall be such as may be prescribed.

27.

Board of Faculty, Admission Committee, Examination Committee and other Authorities of the University.

- The constitution, powers and functions of the Board of Faculties, the Admissions Committee, the Examination Committee and of such other authorities of the University which may be declared by the Statutes to be authorities of the University shall ; be such as may be prescribed.

28.

Power to make statutes.

(1)

The Executive Council shall make the statutes of carrying out the purposes of this Act.

(2)

Subject to the provisions of this Act the Statutes may provide for all or any of the following matters, namely -

(a)

the constitution, powers and functions of the authorities of the University, as may be constituted from time to time;

(b)

the appointment and continuance in office of the members of the said authorities, filling of vacancies of members of the said authorities, filling of vacancies of members and all other matters relating to those authorities for which it may be necessary to provide;

(c)

the appointment, powers and duties of the officers of the University and their emoluments;

(d)

the appointment of teachers of the University and other academic and administrative staff and their emoluments;

(e)

the appointment of teachers and other academic and administrative staff working in the University or Institution for specific period for undertaking a joint project;

(f)

the conditions of service of employees including provisions for retirement benefits, insurance and provident fund, the manner of termination of service and disciplinary actions;

(g)

the principles governing seniority of service of employees;

(h)

the procedure for settlement of disputes between employees or students and the University;

(i)

the procedure for appeal to the Executive Council by any employee or students against the action of any officer or other authority of the University;

(j)

the conferment of honorary degrees;

(k)

the withdrawal of degree, diploma, certificate and other academic distinctions;

(l)

the institution of fellowships, scholarships, studentships, medals and prizes;

(m)

the maintenance of discipline among the students;

(n)

the establishment and abolition of Department, Centers and other constituent institutions/colleges, etc.;

(o)

the delegation of powers vested in the authorities or officers of the University; and

(p)

all other matters, which are in this Act or may be prescribed.

(3)

The Executive Council shall not make, amend or repeal any Statute affecting the powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes and any opinion so expressed shall be considered by the Executive Council.

(4)

Notwithstanding anything contained in the foregoing sub-sections the Chancellor may direct the University to make provisions in the Statutes, in respect of any matter specified by him and if the Executive Council is unable to implement such a direction within sixty days of its receipt, the Chancellor may, after considering the reasons, if any, communicated by the Executive Council for its inability to comply with such direction, make or amend the Statutes accordingly as he may deem fit.

29.

Power to make Ordinances.

- Subject to the provisions of this Act and the Statutes, the Ordinances shall be made by the Executive Council which may provide for all or any of the following matters, namely -

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degree, diploma, certificate and other academic distinction, the qualification for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged for courses of study in the University and for admission to the examinations, degrees, diplomas and certificates of the University;

(f)

the conditions for the award of fellowships, scholarships, studentships, medals and prizes;

- (g) the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;
- (h) the conditions of residence of the students of the University;
- (i) the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and prescribing of special courses of studies for them within the University;
- (j) the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;
- (k) the establishment of Centre of Studies, Board of Studies, Interdisciplinary Studies, Special Centers, Specialized Laboratories and other Committees;
- (l) the manner of co-operation and collaboration with other Universities and authorities including professional bodies or associations;
- (m) the creation, composition and functions of any other body which is considered necessary for improving the academic stature of the University;
- (n) the remuneration to be paid to the examiners, moderators, invigilators and tabulators; and
- (o) such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes.

30.

Annual Report.

- (1) The Annual Report to the University shall be prepared under the direction of the Executive Council and shall be submitted to the Court on or after such date as may be prescribed and the Court shall consider the report in its annual meeting;

- (2) The Court shall submit the Annual Report to the Chancellor along with its comments, if any.

31.

Annual Accounts.

- (1) The Annual Accounts and Balance Sheet of the University shall be prepared under the directions of the Executive Council and shall, once at least every year and at intervals of not more than fifteen months, be audited by an experienced and qualified firm of Chartered Accountants of repute.

- (2) A copy of the Annual Accounts, together with the audit report thereon, shall be submitted to the Court and the Chancellor along with the observations of the Executive Council.

- (3) Any observations made by the Chancellor on the annual accounts shall be brought to the notice of the Court and the Executive Council and the observations, if any, shall after review by the Executive Council, be submitted to the Chancellor and shall be put in the public domain.

32.

Conditions of service of employees.

- (1) Every employee of the University shall be appointed/engaged as per provisions of the Statutes.

- (2) Any dispute arising between the University and any of the employees appointed substantively, shall be referred to the Vice-Chancellor who shall decide the dispute after affording an opportunity to the employee within three months from the

date of its reference.

(3)

Any dispute in respect of any employee engaged temporarily or on ad-hoc or part time or casual basis shall be heard and decided by the Vice-Chancellor.

(4)

Any person aggrieved by the order of the Vice-Chancellor may prefer an appeal to the Chancellor. The decision of the Chancellor in such an appeal shall be final.

33.

Right to Appeal.

(1)

Any student or candidate for an examination, whose name has been removed from the rolls of the University by the orders or resolution of the Academic Council, Proctorial Board or Controller of Examinations as the case may be and who has been debarred from appearing at the examinations of the University for more than one year, may within ten days of the date of receipt of such orders or copy of such resolution appeal in writing to reverse the decision to the aforesaid authorities or the concerned Committee, as the case may be.

(2)

Any decision taken by the Vice-Chancellor shall be final.

34.

Employees Provident Fund and Pensions.

- The University may constitute for the benefit of its employees such pension or welfare schemes or Provident Fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be decided by the Executive Council.

35.

Disputes as to the Constitution of Authorities and bodies.

- If, any question arises as to whether any person has been duly nominated or appointed as or is entitled to be a member of any authority or other body of the University, the matter shall be referred to the Chancellor whose decision thereupon shall be final.

36.

Constitution of Committees.

- Where any authority of the, University is given power under this Act or the Statutes to appoint Committees, such Committees shall save as otherwise provided, consist of the members of the authority concerned and of such other persons as the authority in each case may think fit.

37.

Filling of the vacancies.

- All vacancies among the members (other than ex-officio) of any authority or other body of the University shall be filled as soon as may be convenient by the person or body who appointed, nominated or co-opted the members whose place has become vacant for the remaining term for which he has been appointed or co-opted.

38.

Invalidity of proceeding.

- No act or proceedings of any authority of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

39.

Mode of proof of University records.

- A copy of any receipt, application, notice, proceeding, resolution of any authority or Committee of the University or other documents in possession of the University, if certified by the Registrar, shall be received as prima-facie evidence of the such receipt, applications, notice, order, proceeding or resolution, documents or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original would, if produced have been admissible in evidence.

40.

Publication of Statues and Ordinance.

(1)

Every Statute or Ordinance made under this Act shall be made available in writing.

(2)

Each new Statute or Ordinance made under this Act shall be enforced as soon as it is made by the competent authority.

41.

Permanent Endowment Fund.

(1)

The Society shall establish a permanent Endowment Fund of at least rupees ten crore as per law and no money shall be withdrawn from the principal amount of this fund without prior permission of the State Government.

(2)

The University shall have the power to invest the permanent Endowment Fund in such manner as may be prescribed.

(3)

The University may transfer any amount from the general fund or the development fund to the permanent endowment fund.

(4)

Any amount exceeding the minimum amount specified in sub-section (1) may be withdrawn from the permanent endowment fund by the University for the purposes of development of the University.

42.

General Fund.

(1)

The University shall establish a general fund to which the following amount shall be credited, namely -

(a)

all fees which may be charged by the University;

(b)

all sums received from any other sources;

(c)

all contributions made by the Society ; and

(d)

all contributions made in this behalf by any other person or bodies which are not prohibited by any law for the time being in force.

(2)

The money credited to the general fund shall be applied to meet all the recurring expenditures of the University.

43.

Development Fund.

(1)

The University shall also establish a development fund to which the following moneys shall be credited, namely -

(a)

development fees, which may be charged from students;

(b)

all sums received from other sources for the purpose of the development of the University;

(c)

all contributions made by the Society;

(d)

all contributions made in this behalf by any other person or bodies which are not prohibited by any law for the time being in force; and

(e)

all incomes received from the permanent endowment fund.

(2)

The moneys credited to the development fund from time to time shall be utilised for the development of the University.

44.

Maintenance of Funds.

- The funds established under sections 41, 42 and 43 shall subject to general supervision and control of the Court be

regulated and maintained in such manner as may be prescribed.

45.

Financial Condition.

- The University shall not be eligible for any grants in aid or any financial assistance from the State Government or any other body or Corporation owned and controlled by the State Government.

46.

Fees.

- The fees charged for different academic programmes shall be in accordance with laws for the time being in force and the fees structure shall be put in public domain.

47.

Power of State Government to call for information and records.

(1)

It shall be the duty of the University or any authority or officer of the University to furnish such information or records relating to the administration or finance and other affairs of the University as the State Government may call for.

(2)

The State Government, if it is of the view that there is a violation of the Act or the Statutes or Ordinances made hereunder may issue such directions to the University under Section 51 as it may deem necessary.

48.

Dissolution of University.

(1)

If the University proposes its dissolution in accordance with the law governing its constitution or incorporation, it shall give at least six months written notice to the State Government.

(2)

On receipt of notice referred to in sub-section (1) the State Government shall make such arrangements for administration of the University from the date of dissolution of the University and until the last batch of students in regular courses of studies of the University complete their courses or studies in such manner as may be prescribed.

49.

Expenditure of the University during dissolution.

(1)

The expenditure for administration of the University during the taking over the liabilities of the University under Section 48 shall be met out of the Permanent Endowment Fund, the general fund and the development fund.

(2)

If the funds referred to in sub-section (1) are not sufficient to meet the expenditure of the University during the taking over the liabilities of the University such expenditure may be met by disposing off the properties or assets of the University by the State Government.

50.

De-recognition of the University by the State Government.

(1)

Where the State Government receives a complaint that the University is not functioning in accordance with the provisions of this Act, it shall require the University to show cause within such time, which shall not be less than sixty days, as to why the University should not be derecognised.

(2)

If, upon receipt of the reply of the University to the notice given under sub-section (1), the State Government is satisfied that a prima-facie case of mismanagement or violation of the provisions of this Act in the functioning of the University is made out, it shall order such enquiry as it deems necessary.

(3)

For the purpose of an inquiry under sub-section (2), the State Government shall by notification, appoint an officer or authority as the enquiring authority to enquire into the allegations of violation of the provisions of this Act.

(4)

Every inquiring authority appointed under sub-section (3) shall while performing its functions under this Act have all the powers of Civil Court under the Code of Civil Procedure, 1908 trying a suit and in particular in respect of the following

matters, namely -

(a)

summoning and enforcing the attendance of any witness and examining him on oath;

(b)

requiring the discovery and production of any document;

(c)

requisitioning any public record or copy thereof from any office; .

(d)

receiving evidence on affidavits; and

(e)

any other matter which may be prescribed.

(5)

If, upon receipt of the inquiry report, the State Government is satisfied that the University has violated any provisions of this Act, it shall direct the University to make necessary improvement and suggest for proper implementation of the provisions of this Act.

(6)

If it is observed that the University is violating the provisions of this Act continuously for three times the State Government may require the University to show cause within such time which shall not be less than two months, as to why the University should not be derecognised. If, upon receipt of the said reply of the University, the State Government is satisfied that prima-facie case of violation of the provisions of this Act, is made out it may de-recognise the University by a notification published in the Gazette.

(7)

During the period of the management of the University under sub-section (6) the State Government may utilise the permanent endowment fund, the general fund or the development fund for the purpose of the management of the affairs of the University, if the funds of the University are not sufficient to meet the requisite expenditure of the University, the State Government may dispose off the assets or the properties of the University to meet the said expenses.

(8)

Every notification under sub-section (6), shall be laid before both Houses of the State Legislature before implementation, 51.

Power of the State Government to issue directions on policy matters.

- The State Government may issue such directions from time to time to the University on policy matters not inconsistent with the provisions of this Act as it may deem necessary. Such directions shall be complied with by the University, failing which the State Government may take a reasoned action against the University.

52.

Status of Assets/Liabilities on dissolution/d

- recognition. - All assets and properties including permanent endowment fund, general fund or any other fund also the liabilities of the University will belong to the Society in case of dissolution of the University under any clause mentioned herein above in the Act.

53.

Power to remove difficulties.

(1)

The State Government may for the purpose of removing any difficulties, particularly in relation to the transition from the provisions of the Uttar Pradesh State Universities Act, 1973 to the provisions of this Act, direct that the provisions of this Act shall during such period as may be specified in the order, have effect subject to such adaptations, whether by way of modification, addition or omission as it may deem necessary or expedient:

Provided that no such order shall be made after two years from the date of commencement of this Act.

(2)

Every order made under sub-section (1) shall be laid before both Houses of State Legislature as soon as may be after it is made.

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